

Janardan Dutt Shukla v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 August 2014 · WRIT - C No. 44494 of 2014 · **Writ disposed; petitioner to complete Clause 4.44 mutation formalities; licensee to decide.**

HEADNOTE

Bills continuing in a deceased consumer's name do not entitle the heir to mutation on a writ. Under Clause 4.44 of the Electricity Supply Code, 2005 the applicant must follow the prescribed procedure, furnish no-objection and clear entire outstanding dues; if those formalities are completed, mutation may be carried out even suo motu. The eldest son was relegated to apply to the licensee under that clause.

FACTUAL SUMMARY

The petitioner, eldest son of Late Phool Chandra Shukla, approached the High Court because electricity bills continued to be issued in his late father's name and mutation of the connection had not been carried out. The deceased consumer was survived by his widow Smt. Vidyawati, three adult sons and one adult married daughter. The petitioner sought substitution as the recorded consumer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of deceased consumer's connection

HOLDING

Mutation of a deceased consumer's connection under Clause 4.44 requires the applicant to follow the prescribed procedure, furnish no-objection and clear the entire outstanding dues; if those formalities are completed, mutation may be carried out even suo motu. The Court disposed of the writ by directing the petitioner to complete the formalities within one month and apply with requisite fees, and directing the licensee to pass orders under Clause 4.44 within three weeks thereafter. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELDEST SON IS ENTITLED TO MUTATION IN HIS SOLE NAME VIS-À-VIS THE WIDOW AND OTHER ADULT HEIRS

Left to the licensee after no-objection and other Clause 4.44 formalities. ¶ 1